marriage, divorce, inheritance and property rights. These subjects, which the UCC is expected to cover, are listed in Entry 5 of List III in the Concurrent List of the Seventh Schedule of the Constitution. While state UCCs are applicable within the state jurisdiction, the central legislation will apply to the entire country. A state law also needs presidential assent for it to come into effect.

Among the states, Goa already has a common civil law for all religions. At the time of its liberation, the Goa, Daman and Diu (Administration) Act, 1962, was passed, according to which all existing laws would be in force till amended or repealed by a competent legislature or other competent authority. By virtue of this, the Portuguese Civil Code of 1867, which ran in Goa at the time of liberation, remains in force in the state though it has gone through multiple amendments. Critics say the Goa civil code is not exactly uniform as it has several exemptions. For instance, it gives a Hindu man the right to marry a second time if his wife fails to deliver a male child by the time she is 30.

As the subjects under the UCC fall under the three lists in the Seventh Schedule, a national legislation will require a constitutional amendment, which in turn will need two-thirds of the members to support it in both houses of Parliament and ratification by at least half of the state legislatures. At the moment, the BJP lacks the numbers in the Rajya Sabha and will have to rely on parties like the YSRCP (Yuvajana Sramik Rythu Congress Party) and the BJD (Biju Janata Dal) for support in the upper house if the UCC law has to be passed. But the YSRCP, which is otherwise friendly towards the BJP, has made it clear that it will not support the UCC.



"Nobody is opposing the UCC. Its draft is yet to be put in the public domain. Let it be completed, then we will comment"

– SANJAY RAUT
MP, Shiv Sena (UBT)

Also, of the 30 state assemblies in India, the BJP rules only 10, where they can expect the legislation to be ratified. That's why the party is keen on getting it passed in assemblies first. "If a majority of the states pass the UCC, we may not even need a central law," says a senior BJP leader. "Once the BJP-ruled states can showcase that the UCC is good for all communities and garner public support, it will put pressure on non-BJP states too to legislate on the UCC."

While the AIMPLB and other Muslim organisations have opposed the UCC, the BJP is trying to engage with other sections of the community, especially the Pasmanda Muslims. The Pasmandas are deemed the most oppressed, marginalised and socially and economically isolated Muslims in India. To strengthen its outreach among them, the BJP, in July, appointed former Aligarh Muslim University vice-chancellor Tariq Mansoor, a Pasmanda Muslim, as one of its vice presidents. Since July 23, the Rashtrawadi Muslim Pasmanda Mahaz, led by BJP leader and its Muslim OBC face Atif Rasheed, has been running awareness programmes among Muslims. "We are trying to counter the misinformation spread by the Personal Law Board. The UCC is about giving justice through uniform civil laws. It's not about bringing uniformity in religious practices, culture or customs. Some Muslim organisations are peddling lies the way they did with CAA," says Rasheed, who claims that Pasmanda Muslims constitute 85 per cent of the total number of Muslims in India.

Post the triple talaq law, the BJP expects the discourse on UCC to attract Muslim women voters who have long been demanding amendments to Sharia laws. In 1971, a committee formed by the ministry of education and social welfare to study the status of women in India recommended expeditious implementation of the UCC. Zakia Soman, a founder of the Bharatiya Muslim Mahila Andolan, which has been demanding codification of Muslim personal laws, wants to engage in the current discourse on the UCC because she sees no hope of reform within the space of the Muslim personal law. For Soman, UCC could be their chance at gender justice. "PM Modi has repeatedly talked about '*nari shakti*' and '*beti bachao*'. The framing of an inclusive, gender-just UCC is an opportunity for the government to walk the talk. It must make the exercise a truly collaborative one," she wrote in a newspaper column. PM Modi, in a recent 'Mann ki Baat' address, highlighted how changes in the government's Haj policy helped more women go for the annual pilgrimage. More than 4,000 Muslim women went for Haj this year without a *mahram*, or a male companion.

In 1996, while responding to a no-confidence motion in Parliament, the then prime minister, Atal Bihari Vajpayee, had lamented that because of his party's stand on controversial issues such as the UCC, secular parties were unwilling to extend support to his government. Asking for a bigger debate, he said that it was not a Hindu vs. Muslim issue. In fact, he claimed, he appreciated a few things in Muslim marriage rituals such as the practice of the bride's consent during the nikah ceremony. Taking part in the same debate, former prime minister P.V. Narasimha Rao referred to the Hindu practice in Andhra Pradesh that allows a maternal uncle to marry his niece. He wanted to know how lawmakers will handle these diversities in the UCC. Beyond the political din over the UCC, the lawmakers will have to factor in these nuances in all communities if they really want to implement one law for a culturally diverse country. ■